

23STCV30395 23STCV30395

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-17

Motion: PLAINTIFF'S MOTION TO COMPEL DEPOSITION OF DEFENDANT NDIDI DURUHEISIE & REQUEST FOR MONETARY SANCTIONS

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Case Number: 23STCV30395 Hearing Date: September 17, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

ELAINE GIPSON, an individual,

Plaintiff,

vs.

ROYAL LEARNING CENTER, INC., a

California Corporation; DIDI DERHERSI, an individual; and DOES 1 through 100, inclusive.

Defendants.

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CASE NO: 23STCV30395

[TENTATIVE] ORDER RE: PLAINTIFF'S
MOTION TO COMPEL DEPOSITION OF DEFENDANT NDIDI DURUHEsie & REQUEST FOR
MONETARY SANCTIONS

Dept. 731

September 17, 2026

8:30 a.m.

Matter No. 12

Moving Party: Plaintiff, Elaine Gipson

Opposing Party: Defendant, Ndid Duruhsie [erroneously sued as Didi
Derhers]

Notice: OK

Background Facts

Plaintiff Elaine Gipson sues her former employers, Defendants Royal Learning Center, Inc., Ndidi Duruhesie, and Does 1 through 100, pursuant to a December 13, 2023, Complaint alleging wage and hour claims and a derivative Business and Professions Code claim.

Now before the Court is Plaintiff's motion to compel the deposition of Defendant Ndidi Duruhesie, arguing that while Defendant Duruhesie attended a remote deposition on June 23, 2026, she and counsel of record, Chijioke O. Ikonte, Esq., first asked to move the deposition from 10:00 am to 11:30 am and thereafter failed to proceed with the deposition in light of Defendant Duruhesie's lack of a good internet connection and defense counsel's conflicted scheduled relating to a settlement conference in federal district court. The motion requests \$4,948.75 in monetary sanctions against Defendant Duruhesie and Chijioke O. Ikonte, Esq., jointly and severally.

The motion is belatedly opposed by Defendant Duruhesie, who argues in essence that even if the court grants relief as to setting a date for deposition, no discovery abuse exists here. Specifically, Defendant Duruhesie argues that prior to the June 23rd deposition, Plaintiff had twice postponed Duruhesie's deposition, and that on the day of the June 23rd deposition, Defendant Duruhesie made herself available for deposition within the next week, offering to defer any deposition of Plaintiff's to a subsequent date, with Plaintiff's counsel stating the parties could meet and confer thereafter. The opposition also argues against sanctions.

In reply, Plaintiff argues that the opposition should not be considered as untimely, notes the opposition's concession that the deposition did not go forward, and argues in favor of sanctions.

Plaintiff's motion is now before the Court.

Consideration of Plaintiff's Opposition

The Court accepts Defendant Duruhesie's

late opposition. The reply responds on the merits, and no prejudice is apparent to Plaintiff from consideration of the opposition, favoring a disposition on the merits of all papers. (See *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 343 [when party appears, argues the merits, and shows no prejudice from the untimely notice, purpose of notice is fulfilled, usually effecting waiver].)

Motion to Compel

Deposition; Request for Sanctions

Motion to Compel

Deposition

i. Legal

Standard

After a deposition notice has been properly served, if the party or designated deponent does not serve a valid objection pursuant to section 2025.410 and then fails to appear, fails to proceed with the deposition, or fails to produce the documents or other materials identified in the notice, the noticing party may move for a court order compelling the deponent to appear, testify, and produce the requested materials. (Code Civ. Proc., § 2025.450, subd. (a).)

Section 2025.450 contains no time limit for a motion to compel where a party fails to attend the deposition or produce any documents after valid service of the deposition notice and no objections have been made. (See Code Civ. Proc., § 2025.450, subds. (a)-(i)(2).)

If the motion seeks to compel production of documents, the motion must be accompanied by a showing of “good cause,” i.e., declarations containing specific facts justifying inspection of the documents described in the notice. (Code Civ. Proc., § 2025.450, subd. (b)(1); see Code Civ. Proc., § 2016.040.)

No “meet and confer” is required where the deponent “fails to attend the deposition and produce the documents ... described in the deposition notice.” In such cases, all that is required is a declaration by the moving party that the party has contacted the deponent “to

inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

ii. Discussion

After review, sufficient grounds
exist for relief.

The papers do not substantively
disagree on Plaintiff’s right to depose Defendant Duruhesie, nor on the fact
that the June 23rd deposition was duly noticed but ultimately did not go
forward. (See, e.g., Opposition, p. 2 [“Defendants do not seek to prevent this
deposition. They remain willing to produce Ms. Duruhesie on a mutually agreed
date and request a reciprocal schedule for Plaintiff Elaine Gipson’s
deposition. The Court may therefore set dates certain if it concludes an order
is useful.”].)

iii. Conclusion

The Court accordingly GRANTS
Plaintiff’s motion to compel Defendant Duruhesie’s deposition.

Defendant Duruhesie SHALL appear at
deposition within 21 days of this Order.

The Court will set an appropriate
date and time for deposition at oral argument.

Request for Sanctions

i. Legal Standard

If a motion under subdivision (a)
is granted, the court shall impose a monetary sanction under Chapter 7
(commencing with Section 2023.010) in favor of the party who noticed the
deposition and against the deponent or the party with whom the deponent is affiliated,
unless the court finds that the one subject to the sanction acted with
substantial justification or that other circumstances make the imposition of
the sanction unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii. Discussion

After review, the Court determines that sanctions are warranted, in part, and only against Defendant Duruhesie.

While the opposition goes to lengths to argue that no discovery abuse took place here, a discovery abuse exists where a party fails to submit to an authorized method of discovery (Code Civ. Proc., § 2023.010, subd. (d)), and here, Defendant Duruhesie did not proceed with her noticed June 23rd deposition, and as gleaned from the papers, since that date has failed to sit for a deposition. Under these circumstances, a sufficient discovery abuse supporting sanctions exists.

However, sanctions are limited to four hours reasonably spent preparing for the June 23rd deposition, four hours reasonably spent preparing the papers before the Court, and one hour reasonably spent attending the hearing for Plaintiff's motion, at a rate of \$275.00 per hour, plus \$480.00 in non-appearance costs, totaling \$275.00 per hour times nine hours plus \$480, equaling \$2,475.00 plus \$480.00, for a final sanctions award of \$2,955.00.

Sanctions are limited to Defendant Duruhesie.
(Code Civ. Proc., § 2025.450, subd. (g)(1).)

c. Conclusion

Plaintiff Elaine Gipson's requests for monetary sanctions is thus GRANTED, in part, in the amount of \$2,955.00, as against Defendant Duruhesie.

Defendant Duruhesie is ORDERED to remit \$2,955.00 to Plaintiff's counsel within 21 days of this Order.

Plaintiff Elaine Gipson is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 17, 2026 _____

MARK C. KIM

Judge of the
Superior Court